



U.S. Department
of Transportation

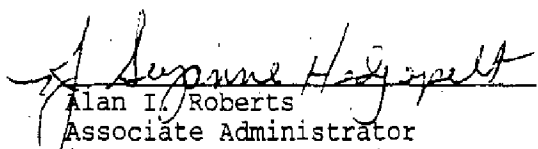
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10259 (EXTENSION)
ORIGINAL December 30, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10259 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 12 1995

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Phillips Petroleum Company
Bartlesville, OK

June 3, 1993 &
May 31, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DEC 30 1991

DOT-E 10259

1. Phillips 66 Company, Bartlesville, Oklahoma, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages described herein of certain flammable liquids listed in paragraph 3 below for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of certain mercaptans and aliphatic mercaptan mixtures in a stainless steel DOT Specification 57 portable tank having a capacity not exceeding 250 gallons, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Phillips 66 Company's application dated August 31, 1989 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon, and additional information dated March 1, 1991.

3. HAZARDOUS MATERIALS (Descriptor and class). Butyl mercaptan, ethyl mercaptan, iso-propyl mercaptan, tert-butyl mercaptan, and aliphatic mercaptan mixtures, all classed as flammable liquids. Ethyl mercaptan may not be transported by vessel.

4. PROPER SHIPPING NAME (49 CFR 172.101). Butyl mercaptan (UN2347); Ethyl mercaptan (UN2363); Isopropyl mercaptan (UN2402); or Mercaptan mixture, aliphatic, n.o.s. (UN1228); as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.141.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 57 portable tank having a capacity not exceeding 250 gallons and constructed from type 316 stainless steel. Each portable tank must be ASME Code "U" stamped with a design pressure of at least 40 PSIG. In no case, may the metal thickness be less than 3/16 inch. Each tank must be equipped with safety relief valves which conform with all of the requirements contained in Section 173.315(i). The tank may not be liquid full at 130 degrees fahrenheit.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modification or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Each portable tank must be plainly marked on two sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10259".

c. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration. Portable tanks may be shipped only in a railcar that provides specific facilities for bracing a tie down of the tanks.

d. Calculations showing compliance with the requirements prescribed in Section 173.315(i) must be submitted to the Office of Hazardous Materials Exemptions and Approvals prior to the first shipment.

e. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

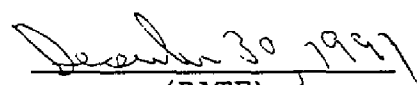
f. When transported in international commerce by vessel, packages authorized by this exemption must comply with sections 26.1 and 26.2 of the General Introduction to the International Maritime Dangerous Goods Code.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. August 31, 1993.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials safety


(DATE)

Address all inquiries to: The Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, U.S. Department of Transportation, Washington,
D.C. 20590. Attention: Exemptions Program.

Dist: FHWA, FRA, FAA, USCG.